

trustees must raise the expenses out of the estate by way of mortgage (*c*); and at the tenant for life's decease the apportionment must be made in like manner.

**Mortgage by trustees.** — However, a mortgage, where neither the tenant for life nor remainderman will make the advance, is more easily to be suggested than to be carried into effect, for few persons would be disposed to lend their money on such a security, in the absence of any express power to mortgage. In such a case, therefore, it seems necessary to have recourse to the Court, except where the difficulty is met by the provisions of the Act before referred to (*d*).

\* 2. **Old rule of contribution.** — The old rule of con- [\*372] tribution was, that the tenant for life should advance one-third, and the remainderman two-thirds (*a*); but the question was put by Lord Thurlow, "Is a tenant for life at the age of ninety-nine, whose title accrued in possession when he was ninety-eight, to pay one-third — a great deal more than any possible enjoyment? According to that rule, a man of the age of ninety-nine, who has the enjoyment only of ten days pays as much as a man of twenty-five" (*b*).

3. **Rule of keeping down the interest on the fine.** — Lord Alvanley adopted the rule (*c*), (and from the case of *Lawrence v. Maggs*, it would seem that Lord Northington had before acted upon the same principle (*d*),) that the tenant for life should merely *keep down the interest* of the fine. But Lord Eldon said, "he could not agree to that: in the case of tenant for life and remainderman in *tail* or in *fee*, the *inheritance* being charged with the mortgage, it was fair the tenant

(*c*) See *Buckeridge v. Ingram*, 2 Ves. jun. 666; *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 121; *Allan v. Backhouse*, 2 V. & B. 72.

(*d*) 23 & 24 Vict. c. 145, s. 9; *ante*, pp. 365, 366.

(*a*) *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 118, *per* Sir J. Leach; *Lock v. Lock*, 2 Vern. 666, R. L. 1710, B. fol. 120; *Verney v. Verney*, 1 Ves. 428; *Limbros v.*

*Francia*, cited *Ib.*; *Graham v. Lord Londonderry*, cited *Stone v. Theed*, 2 B. C. C. 246; and see *Rowell v. Walley*, 1 Ch. Rep. 218; *Ballet v. Spranger*, Pr. Ch. 62; *Cornish v. Mew*, 1 Ch. Ca. 271.

(*b*) See *White v. White*, 9 Ves. 555.

(*c*) *Buckeridge v. Ingram*, 2 Ves. jun. 652, see 666; *White v. White*, 4 Ves. 24, see 33.

(*d*) 1 Eden, 453, see 455.